IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-06
CA(CAA) No.-117/230/232/ND/2022

IN THE MATTER OF:
Khatushyam Pvt. Ltd. with 5 Star Real Estate Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232 **Order delivered on 17.04.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant :
For the Respondent :

ORDER

Order pronounced in open court vide separate sheets. CA(CAA) No.-117/230/232/ND/2022 is **allowed.**

Sd/- **Sd/-**
(DR. BINOD KUMAR SINHA) **(P.S.N PRASAD)**
MEMBER (T) **MEMBER (J)**

BEFORE THE NATIONAL COMPANY LAW TRIBUNAL

COURT NO. V, NEW DELHI

CA (CAA) -117/ (ND)/2022

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

In the matter of Scheme of Amalgamation

OF

KHATUSHYAM PRIVATE LIMITED
(Applicant Company-1 /Transferor Company)

AND

5 STAR ESTATE PRIVATE LIMITED
(Applicant Company-2/Transferee Company)

CORAM:

JUSTICE P.S.N PRASAD HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

Khatushyam Private Limited

Registered Office at: 505, PP Towers, Netaji Subhash Place, Pitampura, Delhi-110034, India.

...Transferor Company/Applicant Company-1

5 Star Real Estate Private Limited

Registered office at: 503, PP Towers, Netaji Subhash Place, Pitampura, Delhi-110034, Delhi, India.

...Transferee Company/Applicant Company-2

Order Delivered on*:* 17.04.2023

O R D E R

PER: DR. BINOD KUMAR SINHA, HON'BLE MEMBER (TECHNICAL)

1. This is joint application filed by the applicant companies herein, **M/S Khatushyam Private Limited** (for brevity "Transferor Company") into **M/S 5 Star Real Estate Private Limited** (for brevity "Transferee Company") under Section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement in the nature of amalgamation (hereinafter referred to as the "SCHEME") proposed between the applicants.

2. Affidavit in support of the above application sworn by Mr. Shrey Goel being the authorized signatory of the respective Applicant companies, who has been authorized vide board resolutions dated 06.12.2022 for the Transferor Company and Transferee Company respectively, were duly filed, along with the application. It was also represented that the registered office of the applicant companies are under the domain of Registrar of Companies, NCT of New Delhi & Haryana and within the territorial jurisdiction of this Tribunal.

3. The Applicant Company No. 1/Transferor Company, Khatushyam Private Limited (CIN- U70100DL2016PTC304018) was incorporated under the provisions of the Companies Act, 2013, as a private limited company vide Certificate of Incorporation dated 04.08.2016 having its registered office at 503, PP Towers, Netaji Subhash Place, Pitampura, Delhi-110034, Delhi, India. The Authorized Share Capital of the Transferor Company is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10/- each. The present issued, subscribed and paid-up share capital of the Company is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs. 10/- each.

4. The Applicant Company No. 2/Transferee Company 5 Star Real Estate Private Limited is a private limited company incorporated under the provisions of Companies Act, 1956, vide Certificate of Incorporation dated 28.02.2014 (CIN-U70102DL2014PTC265568) with Registrar of Companies, NCT of Delhi & Haryana and having its registered office at 503, PP Towers, Netaji Subhash Place, Pitam Pura, Delhi-110034. The Authorized Share Capital of the Transferee Company is Rs. 1,00,000/- divided into 10,000 Equity shares of Rs. 10/- each. The present issued, subscribed and paid-up share capital of the Company is Rs. 1,00,000/- divided into 10,000 Equity Shares of Rs.10/- each.

5. The Transferor Company as well as the Transferee Company have filed their respective Memorandum and Articles of Association inter alia delineating their object clauses, as well as their last Audited Annual Accounts for the Financial Year 31.03.2022.

6. The Applicant companies, vide their meeting of the Board of Directors held on 06.12.2022 have unanimously approved the proposed Scheme of

Amalgamation as contemplated above. Copies of said resolutions passed in the said board meetings have been placed on record.

7. It has been stated that the Applicant Company-1/Transferor Company has 3 Shareholders. Certificate from Chartered Accountants certifying list of shareholders was annexed and all of them have given their respective consents by way of affidavits which were annexed to the application. It was further represented that the Applicant Company-1 has nil Secured Creditor and nil Unsecured Creditors and they seek to dispense with the meeting with regards to Shareholder in view of the consent affidavit placed by them. Since the Company has nil Secured Creditor and nil Unsecured Creditor, therefore the necessity of convening/holding a meeting does not arise.

8. It has been stated that the Applicant Company-2/Transferee Company has 3 Shareholders. Certificate from Chartered Accountants certifying list of shareholders was annexed and all of them have given their respective consents by way of affidavits which were annexed to the application. It was further represented that the Company has nil Secured and 2 Unsecured Creditor. In relation to the Shareholders/ Unsecured Creditors, it seeks dispensing with holding/convening of the meetings as their consent affidavits were placed on record. Since the Company has nil Secured Creditors, therefore, the necessity of convening/holding a meeting does not arise.

9. The appointed date as specified in the Scheme is 01.04.2022 subject to the directions of this Tribunal.

10. The Applicant Companies confirmed that the provisions relating to the accounting treatment for the proposed demerger, as contained in the Scheme, were in conformity with the applicable provisions of the Companies Act, 2013.

Certificates from respective Statutory Auditors of the Companies on the accounting treatment, as proposed in the Scheme, were annexed to the application and it is clearly stated that the Accounting treatment is in conformity with the applicable prescribed under Section 133 of Companies Act, 2013.

11. The Applicant Companies have stated that no proceedings for inspection, inquiry or investigation were pending against any of the Applicant Companies.

12. Taking into consideration the submissions and the documents filed therewith, the following directions are issued with respect to convening/holding or dispensing with the meetings of the Shareholders, Secured and Unsecured Creditors as well as issue of notices including by way of paper publication as follows:

A. <u>In relation to the Applicant Company-1:</u>

a) With respect to Equity shareholders: In view of consent affidavits from 3 equity shareholders, having 100% voting share, been filed, convening the meeting of shareholders/members is dispensed with.

b) With respect to Secured Creditors: There are nil Secured Creditor, therefore the necessity of convening a meeting does not arise.

c) With respect to Unsecured Creditors: There are nil Unsecured Creditor, therefore the necessity of convening a meeting does not arise.

B. <u>In relation to Applicant Company-2:</u>

a) With respect to Equity shareholders: In view of consent affidavits, from 3 equity shareholders, convening the meeting of shareholders/members is dispensed with.

b) **With respect to Secured Creditors:** There are nil Secured Creditor, therefore the necessity of convening a meeting does not arise.

c) **With respect to Unsecured Creditors:** In view of consent affidavits from the Unsecured Secured Creditors comprising 100% of the total amount of debt, convening the meeting of Unsecured Creditors is dispensed with.

19. Notice of this application shall also be served on the following:

i. Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2 Floor, Paryawaran Bhavan, CGO Complex, New Delhi-110003;

ii. Registrar of Companies at 4th floor, IFCI Tower, 61, Nehru Place, New Delhi-110019;

iii. Income Tax Department, Income Tax Office, Additional Commissioner of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The notices to Income Tax Authorities shall disclose sufficient details like PAN, ward numbers and assessing officers so that timely and proper reply may be filed.

iv. Any other sectoral regulators required to be served.

The application stands allowed on the aforesaid term and disposed off.

Sd/-
(DR. BINOD KUMAR SINHA)
MEMBER (TECHNICAL)

Sd/-
(SHRI P.S.N. PRASAD)
MEMBER (JUDICIAL)